

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

3. M-CV-0096597 SFC PROMENADE PARK v. DORTON, BRIELE

Stay of Execution

Appearances of the parties are required at the hearing.

4. S-CV-0043042 BLANCO, ENEDINA v. LAZZARESCHI, RICHARD

Petition for Approval of Minor's Compromise Claim (Ayanna De La Torre-Herrera)

Petitioner's petition for approval of minor's compromise claim is denied without prejudice. Petitioner requests the court to approve attorney's fees in the amount of 36.5% of minor's gross recovery. Absent extraordinary and compelling circumstances, the court finds that reasonable attorney fees for representation of a minor are no more than one-fourth of minor's gross recovery.

5. S-CV-0049276 BARBOUR, MYKEL v. CREEKSIDE TOWN CENTER

Defendant Professional Security Consultant Motion for Leave to File Cross-Complaint

Defendants seek leave of court to file a cross-complaint. On April 30, 2026, the court continued the matter to allow defendant to file a supplemental declaration that attaches its proposed cross-complaint for the court's consideration. On May 7, 2026, defendant's attorney of record, Cynthia Lawrence, filed a supplemental declaration that attaches defendant's proposed cross complaint.

A defendant who fails to file a cross-complaint at the time of filing the answer must seek leave from the court to file the cross-complaint. (Code Civ. Proc., §§ 426.50, 428.50, subd. (a).) Leave to file a compulsory cross-complaint is generally granted unless the defendant has not acted in good faith or there is substantial prejudice to the plaintiff if leave is granted. (*Silver Organization Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98–100; *Foot's Transfer & Storage Co. v. Superior Court* (1980) 114 Cal.App.3d 897, 902–03.)

The proposed cross-complaint alleges causes of action for (1) Indemnity; (2) Equitable Contribution; and (3) Declaratory Relief—all of which arise from the same transactions as plaintiffs' complaint. The court finds no evidence defendant acted in bad faith. The court further finds there is no risk of substantial prejudice to any party if leave is granted.

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Accordingly, defendants' motion for leave to file a cross-complaint is granted. Defendants shall file and serve the cross-complaint attached to the supplemental declaration of Cynthia Lawrence on or before **May 21, 2026**.

Trial Setting Conference

Appearances of the parties are required. Trial counsel are to personally appear. Remote appearance is not authorized. Trial counsel shall bring their respective trial calendars and schedules.

The parties are ordered to meet and confer in good faith prior to the hearing, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility and Professionalism, to select mutually agreed upon trial dates.

6. S-CV-0051706 NERSESYAN, OVSEP v. JUERN, JEREMY S. M.D.

The motion for summary judgment is continued to **May 21, 2026, at 8:30 a.m. in Department 3**.

7. S-CV-0051886 CHURCHMAN, JAMES v. FCA US

Plaintiff's Motion to Substitute Trustee Jeffrey R. Churchman in Place of Deceased Plaintiff, James Churchman

Plaintiff's motion to substitute trustee Jeffrey R. Churchman in place of deceased plaintiff James Churchman is granted. (Code Civ. Proc., §§ 377.30, 377.31, 377.32.) Jeffrey R. Churchman, surviving son and trustee of plaintiff, James Churchman, is hereby substituted in place of plaintiff James Churchman.

8. S-CV-0052434 GALVAN, MARIA v. LAWTON CONSTRUCTION

Plaintiff's Motion for Preliminary Approval of Class Action Settlement

The unopposed motion is granted. The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Labor Code section 2699(s); *O'Connor v. Uber*